

The Married Women's Property Act, 1874

Source: <https://indiankanoon.org/doc/51897370/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[\[Cites](#)

[0](#)

[, Cited by](#)

[30](#)

[\]](#)

[Union of India - Act](#)

[The Married Women's Property Act, 1874](#)

[UNION OF INDIA](#)

[India](#)

[The Married Women's Property Act, 1874](#)

[Act 38 of 1874](#)

[Published on 24 February 1874](#)

[Commenced on 24 February 1874](#)

[\[This is the version of this document from 24 February 1874.\]](#)

[\[Note: The original publication document is not available and this content could not be verified.\]](#)

[The Married Women's Property Act, 1874](#)

[\(38 OF 1874\)](#)

[15.](#)

[/720](#)

[\[24th February, 1874\]](#)

[An Act to explain and amend the law relating to certain married women, and for other purposes.](#)

[It is hereby enacted as follows:-](#)

[This Act has been extended to the new provinces and merged States by the Merged States \(Laws\) Act 59 of 1949 and to the States of Manipur, Tripura and Vindhya Pradesh by the Union Territories \(Laws\) Act](#)

[30 of 1950](#)

[as amended by Act](#)

61 of 1959

. Manipur and Tripura are full-fledged States now, see Act

81 of 1971

, Sections 3 and 4. It has now been extended to the Union territory of Dadra and Nagar Haveli by Regulation 6 of 1963.

I-PRELIMINARY

1.

Short title .-This Act may be called The Married Women's Property Act, 1874.

2.

Extent and application .- [It extends to the whole of India except the State of Jammu and Kashmir].

But nothing herein contained applies to any married woman who at the time of her marriage professed the Hindu, Muhammadan, Buddhist, Sikh or Jaina religion, or whose husband, at the time of such marriage, professed any of those religions.

And the [State Government]

[Substituted by A.O. 1950, for " provisional Government" .]

may from time to time, by order, either retrospectively from the passing of this Act or prospectively, exempt from the operation of all or any of the provisions of this Act the members of any race, sect or tribe, or part of a race, sect or tribe, to whom [it]

[Substituted by A.O. 1937.]

may consider it impossible or inexpedient to apply such provisions.

The [State Government]

[Substituted by A.O. 1950.]

may also revoke any such order, but not so that the revocation shall have any retrospective effect.

All orders and revocations under this section shall be published in the Official Gazette.

[* * *]

[Last para. omitted by Act

39 of 1925

, Section 392 and Schedule IX.]

3.

Commencement .-[Repealed by the Repealing Act , 1876 (12 of 1876), section 1 and Schedule].

II-MARRIED WOMEN'S WAGES AND EARNINGS

4.

Married women's earnings to be their separate property .-The wages and earnings of any married woman acquired or gained by her after the passing of this Act, in any employment, occupation or trade carried on by her and not by her husband, and also any money or other property so acquired by her through the exercise of any literary, artistic or scientific skill, and all savings from and investments of such wages, earnings and property, shall be deemed to be her separate property, and her receipts alone shall be good discharges for such wages, earnings and property.

lii-insurances By Wives And Husbands

5.

Married woman may effect policy of insurance .-Any married woman may effect a policy of insurance on her own behalf and independently of her husband; and the same and all benefit thereof, if expressed on the face of it to be so effected, shall enure as her separate property, and the contract evidenced by such policy shall be as valid as if made with an unmarried women.

6.

Insurance by husband for benefit of wife .- [(1)] A policy of insurance effected by any married man on his own life, and expressed on the face of it to be for the benefit of his wife, or of his wife and children, or any of them, shall enure and be deemed to be a trust for the benefit of his wife, or of his wife and children, or any of them, according to the interest so expressed, and shall not, so long as any object of the trust remains, be subject to the control of the husband, or to his creditors, or form part of his estate.

When the sum secured by the policy becomes payable, it shall, unless special trustees are duly appointed to receive and hold the same, be paid to the Official Trustee of the [State]

[Substituted by the Adaptation of Laws (No. 2) Order, 1956.]

in which the office at which the insurance was effected is situate, and shall be received and held by him upon the trusts expressed in the policy, or such of them as are then existing.

And in reference to such sum he shall stand in the same position in all respects as if he had been duly appointed trustee thereof by a High Court, under Act No. XVII of [1864]

[See now the Official Trustees Act

2 of 1913

.]

(to constitute an Office of Official Trustee), section 10.

Nothing herein contained shall operate to destroy or impede the right of any creditor to be paid out of the proceeds of any policy of assurance which may have been effected with intent to defraud creditors.

(2)

[Notwithstanding anything contained in section 2, the provisions of sub-section (1) shall apply in the case of any policy of insurance such as is referred to therein which is effected-

(a)

by any Hindu, Muhammadan, Sikh or Jain-

(i)

in Madras, after the thirty-first day of December, 1913, or

(ii)

in any other territory to which this Act extended immediately before the commencement of the Married Women's Property (Extension) Act, 1959, after the first day of April, 1923, or

(iii)

in any territory to which this Act extends on and from the commencement of the Married Women's Property (Extension) Act, 1959, on or after such commencement;

(b)

by a Buddhist in any territory to which this Act extends, on or after the commencement of the Married Women's Property (Extension) Act, 1959:

Provided that nothing herein contained shall affect any right or liability which has accrued or been incurred under any decree of a competent Court passed-

(i)

before the first day of April, 1923, in any case to which sub-clause (i) or sub-clause (ii) of clause (a) applies; or

(ii)

before the commencement of the Married Women's Property (Extension) Act, 1959, in any case to which sub-clause (iii) of clause (a) or clause (b) applies.]

IV-LEGAL PROCEEDINGS BY AND AGAINST MARRIED WOMEN

7.

Married woman may take legal proceedings .-A married woman may maintain a suit in her own name for the recovery of property of any description which, by force of the said [Indian Succession Act, 1865]

[Substituted by Act

61 of 1959

, Section 3, for sub-Section (2) (w.e.f. 1.3.1960).]

, or of this Act, is her separate property; and she shall have, in her own name, the same remedies, both civil and criminal, against all persons, for the protection and security of such property, as if she were unmarried, and she shall be liable to such suits, processes and orders in respect of such property as she would be liable to if she were unmarried.

8.

Wife's liability for post-nuptial debts .-If a married woman (whether married before or after the first day of January, 1866) possesses separate property, and if any person enters into a contract with her with reference to such property, or on the faith that her obligation arising out of such contract will be satisfied out of her separate property, such person shall be entitled to sue her, and, to the extent of her separate property, to recover against her whatever he might have recovered in such suit had she been unmarried at the date of the contract and continued unmarried at the execution of the decree:

[Provided that nothing herein contained shall-

(a)

entitle such person to recover anything by attachment and sale or otherwise out of any property which has been transferred to a woman or for her benefit on condition that she shall have no power during her marriage to transfer or charge the same or her beneficial interest therein, or

(b)
affect the liability of a husband for debts contracted by his wife's agency expressed or implied.]

V-HUSBAND'S LIABILITY FOR WIFE'S DEBTS

9.
Husband not liable for wife's ante-nuptial debts .-A husband married after the thirty-first day of December, 1865 shall not by reason only of such marriage be liable to the debts of his wife contracted before marriage, but the wife shall be liable to be sued for, and shall, to the extent of her separate property, be liable to satisfy such debts as if she had continued unmarried:

Proviso. -Provided that nothing contained in this section shall [* * *] invalidate any contract into which a husband may, before the passing of this Act, have entered in consideration of his wife's ante-nuptial debts.

[VI-HUSBAND'S LIABILITY FOR WIFE'S BREACH OF TRUST OR DEVASTATION

[Inserted by Act 18 of 1927, Section 3.]

10.
Extent of husband's liability for wife's breach of trust or devastation .-Where a woman is a trustee, executrix or administratrix, either before or after marriage, her husband shall not, unless he acts or intermeddles in the trust or administration, be liable for any breach of trust committed by her, or for any misapplication, loss or damage to the estate of the deceased caused or made by her, or for any loss to such estate arising from her neglect to get in any part of the property of the deceased.]

Related AI tags, queries and research notes

Translation